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Case Name: *Rubalcaba v. R&L Carriers Shared Services, LLC*
Case No.: 23CV423929

This is a representative action arising from alleged wage and hour violations. Before the Court is defendant R&L Carriers Shared Services, LLC's ("Defendant") demurrer to plaintiff Joseph Rubalcaba's first amended complaint ("FAC"). For the reasons stated below, the Court OVERRULES the demurrer to the FAC.

I. Background

On October 6, 2023, Plaintiff began this action by filing a complaint against Defendant asserting a sole cause of action for violation of the Private Attorneys General Act ("PAGA"). The same day, Plaintiff filed a separate class action complaint against Defendant in this superior court: *Rubalcaba v. R&L Carriers Shared Services, LLC*, Case No. 23CV423930 (the "Class Action"). Defendant subsequently filed a notice of removal of the Class Action to federal court: *Joseph Rubalcaba v. R&L Carriers Shared Services, LLC* (N.D. Cal., No. 3:23-cv-06581) (the "Federal Action").

The District Court has dismissed the Federal Action. On April 23, 2024, the District Court granted the motion to dismiss Plaintiff's first amended complaint. (Federal Action (N.D. Cal. Apr. 23, 2024) 2024 U.S. Dist. LEXIS 739958.) Plaintiff filed a second amended complaint in May 2024, and on March 6, 2025, the District Court dismissed the second amended complaint with prejudice. (Federal Action (N.D. Cal. Mar. 6, 2025) 2025 U.S. Dist. LEXIS 40956.)

On May 7, 2026, this Court issued an order granting Plaintiff's motion to dismiss the Class Action (Case No. 23CV423930) without prejudice.

In this action, on November 10, 2025, the Court sustained Defendant's demurrer to the complaint with leave to amend. The Court overruled the demurrer on the ground of uncertainty and sustained the demurrer on the ground of failure to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e). The Court did not reach Defendant's argument that Plaintiff had failed to satisfy the PAGA pre-filing requirements.

Plaintiff filed his first amended complaint (“FAC”) on November 26, 2025. As before, the FAC asserts a sole PAGA cause of action. Defendant’s demurrer to the FAC is before the Court. Plaintiff opposes the demurrer.

II. Discussion

A demurrer tests the legal sufficiency of the complaint. (*Chen v. PayPal, Inc.* (2021) 61 Cal.App.5th 559, 568.) It reaches only the contents of the pleading and matters subject to judicial notice. (*Weil v. Barthel* (1955) 45 Cal.2d 835, 837; Code Civ. Proc., § 430.30, subd. (a).) The Court assumes the truth of all material facts properly pleaded, however improbable, and construes the allegations liberally with a view to substantial justice. (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958; *Glennan v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) The Court does not assume the truth of contentions, deductions, or conclusions of law or fact. (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

Defendant requests judicial notice of court records filed in related proceedings. Such records are proper subjects of judicial notice under Evidence Code section 452, subdivision (d). (*People v. Woodell* (1998) 17 Cal.4th 448, 455.) The Court GRANTS the request as to the existence of the court records but not as to the truth of any hearsay statements contained therein.

Defendant demurs to the FAC on two grounds. First, Defendant contends Plaintiff has failed to establish compliance with the prefiling requirements. (Code Civ. Proc., § 430.10, subds. (a), (e).) Second, Defendant contends the FAC fails to allege sufficient facts to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

A. Exhaustion of Administrative Remedies

Defendant initially contends Plaintiff has failed to establish compliance with PAGA’s prefiling requirements, pointing to Labor Code section 2699.3, subdivision (a)(1). (Memorandum, pp. 5:8–7:26.) Defendant argues the FAC must establish PAGA notice compliance on its face. It contends Plaintiff must either attach the LWDA notice or plead its contents with specificity, and that the FAC here does neither. According to Defendant, the FAC

pleads only bare conclusions that notice was given and that the prerequisites were satisfied. (FAC, ¶¶ 17–18.) Defendant also argues that the limitations period has run such that any defect is now incurable.

Plaintiff responds that he has satisfied the notice requirement. (Opposition, pp. 4:9–7:12) He asserts that section 2699.3 imposes no attachment requirement, and further, that the FAC pleads: the date of the notice (August 2, 2023); the method (online to the LWDA and certified mail to the employer); and the agency’s non-response within 65 days. Plaintiff also submitted the actual PAGA letter as an exhibit to the Bogosyan declaration filed with his opposition.

In reply, Defendant disputes each of Plaintiff’s arguments. (Reply, pp. 1:23–5:3.) It contends the declaration is improper extrinsic evidence the Court cannot consider on demurrer. Defendant further contends that, even if considered, the letter merely parrots the Labor Code and is facially deficient.

Compliance with the pre-filing requirements of section 2699.3 is mandatory. (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 381–384, overruled in part on other grounds in *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 196, fn. 8.) Nevertheless, the question presented on demurrer is not whether Plaintiff has proven compliance, but whether the FAC adequately alleges it.

Here, the FAC’s allegations are sufficient. Plaintiff alleges he submitted written notice to the LWDA on August 2, 2023 by online submission, he served Defendant by certified mail, and he did not receive notice from the LWDA within sixty-five calendar days of the postmark date. (FAC, ¶¶ 17–18.) These allegations track the procedural elements of section 2699.3, subdivision (a). The statute imposes no requirement that the notice be attached to the complaint, as Defendant acknowledges in reply. The authorities Defendant cites for the proposition that the notice’s contents must be pleaded are principally federal district court decisions applying federal pleading standards, which do not govern a demurrer before this Court.

Defendant’s further contentions also fail to persuade the Court. Defendant’s argument that the notice itself is substantively deficient because it parrots the Labor Code is not properly

before the Court on demurrer. The notice is not attached to the FAC, and it is not a proper subject of judicial notice as to its contents. Plaintiff submitted the notice as an exhibit to a declaration filed with his opposition, but the Court may not consider extrinsic evidence in ruling on a demurrer. (*Lambert v. Carneghi*, supra, 158 Cal.App.4th at p. 1126.) The Court therefore does not consider the declaration or its exhibit, and it expresses no view on the substantive adequacy of the notice. That issue, if pressed, is one for a later stage on a proper record.

Accordingly, the Court OVERRULES the demurrer on the ground of failure to exhaust administrative remedies.

B. Sufficiency of Facts

Defendant next contends the FAC fails to allege sufficient facts to constitute a cause of action. (See Memorandum, pp. 8:1–15:21; Opposition, pp. 7:13–15:15; Reply, pp. 5:4–10:13.) The Court’s November 10, 2025, order identified defects in the initial complaint: it did not allege a violation was committed against Plaintiff, it did not allege Plaintiff’s type of work or responsibilities, it was conclusory and generic, and it extensively relied upon information and belief. The question before the Court is whether the FAC cures these defects.

The FAC does add new and more specific allegations. It identifies Plaintiff as an hourly, non-exempt driver, employed from February 11, 2019 to December 12, 2022, and paid between \$28.63–\$33.37 per hour. (FAC, ¶ 20.) The FAC identifies three specific workweeks of uncompensated overtime: September 12–18, 2021; October 10–16, 2021; and July 31–August 12, 2022. (*Id.* at ¶ 28.) Plaintiff alleges he received non-discretionary incentive bonuses (\$500 in 2021, \$200 in 2022) that were not factored into the regular rate used to calculate overtime. (*Id.* at ¶¶ 19, 30.) The FAC names the dispatcher, Frank Martinez, who interrupted his meal periods weekly for delivery status updates. (*Id.* at ¶ 30.) The FAC alleges Plaintiff missed rest breaks two to three times per week. (*Id.* at 31.) The FAC also identifies a specific wage statement (with pay date July 15, 2022) and a specific unreimbursed expense (\$10.91 for safety footwear, incurred on May 6, 2020). (*Id.* at ¶¶ 36, 47.)

Here, these allegations respond directly to the deficiencies the Court identified. The FAC now alleges Plaintiff's position and the nature of his work, identifies particular violations committed against him, and supplies dates, amounts, and a named actor. The pleading is no longer primarily composed of conclusory and generic language.

Defendant argues that the additions remain insufficient. Defendant contends, among other things, that the FAC does not allege total hours worked or wages owed for the identified weeks; that the wage-statement allegation defeats itself because the listed categories of hours can be summed (*Morgan v. United Retail Inc.* (2010) 186 Cal.App.4th 1136, 1147); that the footwear expense is a basic wardrobe item not subject to reimbursement (*Townley v. BJ's Restaurants, Inc.* (2019) 37 Cal.App.5th 179, 185); and that Plaintiff continues to plead on information and belief.

Defendant's arguments do not warrant sustaining the demurrer. The FAC alleges a single PAGA cause of action. A general demurrer does not lie to part of a cause of action, and if any part is well pleaded, the demurrer must be overruled. (*Fire Ins. Exchange, supra*, 116 Cal.App.4th at p. 452.) Here, at a minimum, Plaintiff's allegation that non-discretionary bonuses were excluded from the regular rate, resulting in underpaid overtime during identified workweeks, states a cognizable theory pleaded with sufficient particularity. That theory establishes Plaintiff as an aggrieved employee and supports the cause of action. (Lab. Code, § 2699, subd. (c).) Whether Plaintiff can prove the precise hours and amounts is a matter of proof, not pleading.

Defendant's remaining contentions are directed at the merits of particular theories rather than the legal sufficiency of the single cause of action as a whole. Whether the July 15, 2022 wage statement violates section 226(a), or whether the footwear expense is reimbursable under section 2802, may be tested at a later stage. They do not defeat the cause of action on demurrer.

Nor is Plaintiff's continued use of allegations on information and belief fatal. Such allegations are permissible, and the FAC no longer consists almost entirely of them. It now contains specific allegations within Plaintiff's personal knowledge, including identified

workweeks, a named individual, an identified wage statement, and an identified expense and amount.

Lastly, to the extent Defendant contends Plaintiff has not adequately identified the other aggrieved employees, a representative PAGA action need not satisfy the requirements applicable to class actions. (*Arias v. Superior Court* (2009) 46 Cal.4th 969, 980–987.) Under the version of the PAGA statute applicable here, an employee affected by at least one Labor Code violation may seek civil penalties on behalf of the State for violations by the same employer. (*Huff v. Securitas Security Services USA, Inc.* (2018) 23 Cal.App.5th 745, 753–754.) Plaintiff's allegations suffice at the pleading stage.

Accordingly, the Court OVERRULES the demurrer on the ground of failure to state sufficient facts.

III. Conclusion

The Court OVERRULES the demurrer to the First Amended Complaint.

Defendant shall file and serve its answer within 10 days of entry of the formal order. (Cal. Rules of Court, rule 3.1320(j).)

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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